

REQUEST FOR QUOTATION (THIS IS NOT AN ORDER)		THIS RFQ ☐ IS ☒ IS NOT A SMALL BUSINESS SET-ASIDE		PAGE 1 OF 31 PAGES	
1. REQUEST NUMBER 140L1226Q0007		2. DATE ISSUED 04/23/2026		3. REQUISITION/PURCHASE REQUEST NUMBER 0044039225	
4. CERT. FOR NAT. DEF. UNDER BDSA REG. 2 AND/OR DMS REG. 1		RATING			
5a. ISSUED BY BLM CA-STATE OFC BUS SVC BR (CA944) 2800 COTTAGE WAY, SUITE W-1834 SACRAMENTO CA 95825				6. DELIVER BY (Date) 06/30/2027	
5b. FOR INFORMATION CALL (NO COLLECT CALLS)				7. DELIVERY ☒ FOB DESTINATION ☐ OTHER (See Schedule)	
NAME Laurie Ehlinger		TELEPHONE NUMBER AREA CODE 608		NUMBER 377-3532	
8. TO:				9. DESTINATION	
a. NAME		b. COMPANY		a. NAME OF CONSIGNEE BLM-CA EL CENTRO FIELD OFFICE	
c. STREET ADDRESS				b. STREET ADDRESS 1661 S FOURTH ST	
				c. CITY EL CENTRO	
d. CITY		e. STATE		f. ZIP CODE	
		CA		92243	
10. PLEASE FURNISH QUOTATIONS TO THE ISSUING OFFICE IN BLOCK 5a ON OR BEFORE CLOSE OF BUSINESS (Date) 05/26/2026 1000 PD		IMPORTANT: This is a request for information and quotations furnished are not offers. If you are unable to quote, please so indicate on this form and return it to the address in Block 5a. This request does not commit the Government to pay any costs incurred in the preparation of the submission of this quotation or to contract for supplies or service. Supplies are of domestic origin unless otherwise indicated by quoter. Any representations and/or certifications attached to this Request for Quotation must be completed by the quoter.			
11. SCHEDULE (Include applicable Federal, State and local taxes)					
ITEM NUMBER (a)	SUPPLIES/SERVICES (b)	QUANTITY (c)	UNIT (d)	UNIT PRICE (e)	AMOUNT (f)
	SUMMARY: Imperial Sand Dunes Recreational Area (ISDRA) Fee Collections ----- SUBMIT QUOTES TO: lehlinger@ios.doi.gov ----- All responses to this notice must be In Accordance With (IAW) the attached Solicitation, Contract Clauses, Specifications, Requirements, Provisions, Terms, and Conditions. ----- This will be firm fixed purchase order Include all Shipping and/or Travel costs in the current line items ----- Continued...				
12. DISCOUNT FOR PROMPT PAYMENT		a. 10 CALENDAR DAYS (%)	b. 20 CALENDAR DAYS (%)	c. 30 CALENDAR DAYS (%)	d. CALENDAR DAYS
					NUMBER PERCENTAGE
NOTE: Additional provisions and representations ☐ are ☐ are not attached.					
13. NAME AND ADDRESS OF QUOTER			14. SIGNATURE OF PERSON AUTHORIZED TO SIGN QUOTATION		15. DATE OF QUOTATION
a. NAME OF QUOTER					
b. STREET ADDRESS			16. SIGNER		
c. COUNTY			a. NAME (Type or print)		b. TELEPHONE
					AREA CODE
d. CITY		e. STATE	f. ZIP CODE	c. TITLE (Type or print)	
				NUMBER	

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00010	F.O.B. DESTINATION Period of Performance (POP) is 07/01/2026-06/30/2027 and four option periods Period of Performance: 07/01/2026 to 06/30/2031 Performance of Fee Collection for Base Year Base Year Fee Collection Services for the Imperial Sand Dunes Recreational Area (ISDRA) Firm fixed price Services, non-personnel, to provide all plant, equipment, labor and materials (unless otherwise provided herein) necessary to provide fee collection services and permit sales for the ISDRA in accordance with the attached performance work statement (attachment 2). Product/Service Code: R499 Product/Service Description: SUPPORT- PROFESSIONAL: OTHER Delivery: 06/30/2027 Period of Performance: 07/01/2026 to 06/30/2027 Performance of Fee Collection for Base Year				
	00020 Base Year Fee Collection-Option 1-ROVING SALES-To be exercised at the discretion of the government. (Option Line Item) Anticipated Exercise Date 05/31/2027 Product/Service Code: R499 Product/Service Description: SUPPORT- PROFESSIONAL: OTHER Delivery: 06/30/2027 Period of Performance: 07/01/2026 to 06/30/2027 Performance of Fee Collection for Base Year Continued...				

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00030	Base Year Fee Collection. Option 2-WASH ROAD SALES-To be exercised at the discretion of the government. (Option Line Item) Anticipated Exercise Date 05/31/2027 Product/Service Code: R499 Product/Service Description: SUPPORT- PROFESSIONAL: OTHER Delivery: 06/30/2027 Period of Performance: 07/01/2026 to 06/30/2027				
10001	Option Year 1 Fee Collection Services for the Imperial Sand Dunes Recreational Area (ISDRA) Firm fixed price Services, non-personnel, to provide all plant, equipment, labor and materials (unless otherwise provided herein) necessary to provide fee collection services and permit sales for the ISDRA in accordance with the attached performance work statement (attachment 2). (Option Line Item) Anticipated Exercise Date 05/31/2028 Product/Service Code: R499 Product/Service Description: SUPPORT- PROFESSIONAL: OTHER Period of Performance: 07/01/2027 to 06/30/2028				
10002	Option Year 1 Fee Collection. Option 1-ROVING SALES-To be exercised at the discretion of the government. (Option Line Item) Anticipated Exercise Date 05/31/2028 Product/Service Code: R499 Product/Service Description: SUPPORT- PROFESSIONAL: OTHER Period of Performance: 07/01/2027 to 06/30/2028				
10003	Option Year 1 Fee Collection. Option 2-WASH ROAD SALES-To be exercised at the discretion of the government. (Option Line Item) Anticipated Exercise Date 05/31/2028 Continued...				

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20001	Product/Service Code: R499 Product/Service Description: SUPPORT-PROFESSIONAL: OTHER Period of Performance: 07/01/2027 to 06/30/2028 Option Year 2 Fee Collection Services for the Imperial Sand Dunes Recreational Area (ISDRA) Firm fixed price Services, non-personnel, to provide all plant, equipment, labor and materials (unless otherwise provided herein) necessary to provide fee collection services and permit sales for the ISDRA in accordance with the attached performance work statement (attachment 2). (Option Line Item) Anticipated Exercise Date 05/31/2029 Product/Service Code: R499 Product/Service Description: SUPPORT-PROFESSIONAL: OTHER Period of Performance: 07/01/2028 to 06/30/2029				
20002	Option Year 2 Fee Collection. Option 1-ROVING SALES-To be exercised at the discretion of the government. (Option Line Item) Anticipated Exercise Date 05/30/2029 Product/Service Code: R499 Product/Service Description: SUPPORT-PROFESSIONAL: OTHER Period of Performance: 07/01/2028 to 06/30/2029				
20003	Option Year 2 Fee Collection. Option 2-WASH ROAD SALES-To be exercised at the discretion of the government. (Option Line Item) Anticipated Exercise Date 05/31/2029 Product/Service Code: R499 Product/Service Description: SUPPORT-PROFESSIONAL: OTHER Period of Performance: 07/01/2028 to 06/30/2029 Continued...				

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30001	Option Year 3 Fee Collection Services for the Imperial Sand Dunes Recreational Area (ISDRA) Firm fixed price Services, non-personnel, to provide all plant, equipment, labor and materials (unless otherwise provided herein) necessary to provide fee collection services and permit sales for the ISDRA in accordance with the attached performance work statement (attachment 2). (Option Line Item) Anticipated Exercise Date 05/31/2030 Product/Service Code: R499 Product/Service Description: SUPPORT-PROFESSIONAL: OTHER Period of Performance: 07/01/2029 to 06/30/2030				
30002	Option Year 3 Fee Collection. Option 1-ROVING SALES-To be exercised at the discretion of the government. (Option Line Item) Anticipated Exercise Date 05/31/2030 Product/Service Code: R499 Product/Service Description: SUPPORT-PROFESSIONAL: OTHER Period of Performance: 07/01/2029 to 06/30/2030				
30003	Option Year 3 Fee Collection. Option 2-WASH ROAD SALES-To be exercised at the discretion of the government. (Option Line Item) Anticipated Exercise Date 05/31/2030 Product/Service Code: R499 Product/Service Description: SUPPORT-PROFESSIONAL: OTHER Period of Performance: 07/01/2029 to 06/30/2030				
40001	Option Year 4 Fee Collection Services for the Imperial Sand Dunes Recreational Area (ISDRA) Firm fixed price Services, non-personnel, to provide all plant, equipment, labor and materials (unless Continued...				

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ITEM NO. (A)	SUPPLIES/SERVICES (B)	QUANTITY (C)	UNIT (D)	UNIT PRICE (E)	AMOUNT (F)
	otherwise provided herein) necessary to provide fee collection services and permit sales for the ISDRA in accordance with the attached performance work statement (attachment 2). (Option Line Item) Anticipated Exercise Date 05/31/2031 Product/Service Code: R499 Product/Service Description: SUPPORT-PROFESSIONAL: OTHER Period of Performance: 07/01/2030 to 06/30/2031				
40002	Option Year 4 Fee Collection. Option 1-ROVING SALES-To be exercised at the discretion of the government. (Option Line Item) Anticipated Exercise Date 05/31/2031 Product/Service Code: R499 Product/Service Description: SUPPORT-PROFESSIONAL: OTHER Period of Performance: 07/01/2030 to 06/30/2031				
40003	Option Year 4 Fee Collection. Option 2-WASH ROAD SALES-To be exercised at the discretion of the government. (Option Line Item) Anticipated Exercise Date 05/31/2031 Product/Service Code: R499 Product/Service Description: SUPPORT-PROFESSIONAL: OTHER Period of Performance: 07/01/2030 to 06/30/2031				

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SECTION 1 - STANDARD FORM 18

See above Standard Form (SF) 18 (Pages 1-7)

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COMBINED SYNOPSIS

INFORMATION TO PROSPECTIVE OFFERORS

Pursuant to Federal Acquisition Regulation (FAR) 12.202, the Contracting Officer is issuing a combined synopsis/solicitation for the acquisition of Fee Collection Services for the Bureau of Land Management (BLM) Imperial Sand Dunes Recreation Area (ISDRA) managed by the BLM El Centro Field Office, Imperial County, CA.

- (i) This is a combined synopsis/solicitation for the acquisition of commercial items prepared in accordance with the format in FAR Subpart 12.6 and 13.1, as supplemented with additional information included in this notice. This announcement constitutes the only solicitation; quotes are being requested and a written solicitation will not be issued.
 - (ii) Solicitation Number 140L1226Q0007 is being issued as a Request for Quote (RFQ). This solicitation will utilize the policies contained in FAR Part 12, Acquisition of Commercial Products and Commercial Services as appropriate for this acquisition.
 - (iii) The solicitation document and incorporated provisions and clauses are those in effect through Federal Acquisition Circular 2026-01 effective March 13, 2026.
 - (iv) This solicitation is being issued as an unrestricted RFQ. The North American Industry Classification System (NAICS) code associated with this solicitation is 721211, titled Recreational Vehicle Parks and Campgrounds with a size standard of \$10.0 Million.
 - (v) See the attached Performance Work Statement (PWS) for detailed requirements (Attachment 2). The price schedule to be completed and returned with your quote is provided as a separate document (Attachment 1). Wage Determination 2015-5607, Revision 28, dated December 03, 2025, is hereby incorporated into this combined synopsis/solicitation (Attachment 4).
 - (vi) The services to be acquired through this combined synopsis/solicitation are for Fee Collection Services for the BLM ISDRA in accordance with PWS (Attachment 2).
 - (vii) Performance location is detailed in the attached PWS (Attachment 2). The base performance period is July 1, 2026, through June 30, 2027. The four (4), 12-month option periods will be from July 1, 2027, through June 30, 2031.
 - (viii) FAR Provision 52.212-1, Instructions to Offerors – Commercial, applies to this acquisition. Potential offerors shall read and comply with all terms and conditions
 - (ix) FAR 52.212-2, Evaluation – Commercial Items, applies to this acquisition, see Attachment 5 for detailed evaluation criteria. The basis of award will be best value source selection based upon an integrated assessment of Factor 1: Technical, Factor 2: Past Performance (see Attachment 5 for Past Performance References Document), and Factor 3: Price. The Government anticipates making one (1) contract award to the acceptable, responsible offeror whose offer quote conforming to the solicitation will be most advantageous to the Government.
 - (x) Offerors shall ensure that their Representations and Certifications are up to date in the System for Award Management (SAM) which can be accessed through <https://www.sam.gov>. Offerors shall ensure that this acquisition's NAICS Code of 721211.
- Even if offeror has an active SAM registration all offerors must 1) print, complete required entries they must print, complete required entries and submit with their quote.
- (i) FAR Clause 52.212-4, Contract Terms and Conditions – Commercial Items applies to this

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acquisition. See this clause for additional FAR Clauses marked with "X" showing they are applicable to this acquisition

(iii) Additional FAR clauses that apply to this acquisition are provided in Attachment 4 - Clauses. All FAR clauses will be incorporated into the successful offerors' contract award. Additionally provisions that apply to this acquisition are provided at - Provisions. These provisions are incorporated into this solicitation but will not be incorporated into the successful offerors' contract award.

(iv) The Defense Priorities and Allocations System (DPAS) does not apply to this acquisition.

(v) Quotes are due no later than May 26, 2026, 10 a.m. PT. Quotes shall be submitted via electronic mail to point of contact listed below.

(vi) Interested parties may submit questions relating to this solicitation via electronic mail to the point of contacts listed in section and are due no later than close of business Thursday, May 7, 2026.

xvi. The following individuals are points of contact for this combined synopsis/solicitation:

The following sections and attachments are hereby incorporated into this combined synopsis/solicitation and are provided as attachments to 140L1226Q0007:

Laurie Ehlinger
Contracting Officer
Department of the Interior
Bureau of Land Management California
lehlinger@ios.doi.gov or laurie_ehlinger@ios.doi.gov
(608) 377-3532

Attachment 1-Price Schedule

Attachment 2-Performance Work Statement

Appendix 1-Sample Permit Sales Spreadsheet (Attachment 3)

Appendix 2-ISDRA Map

Appendix 3-Sample Season Permit

Appendix 4-Sample Weekly Off-site Permits

Appendix 5-Sample Weekly On-Site Permits

Appendix 6-ISDRA Business Plan

Appendix 7-Recreation and Permit Fee Handbook

Appendix 8-ACH_CC_Fedwire Form

Appendix 9-2025 ISDRA Visitation Stats (Attachment 6)

Attachment 3- Appendix 1-Sample Permit Sales Spreadsheet

Attachment 4-Appendix 9-FY2025 ISDRA Visitation Stats

Attachment 5-Wage Determination 2015-5607 REV 28

Attachment 6-Past Performance References.

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SECTION 2 - CLAUSES

CLAUSES INCORPORATED BY FULL TEXT

Contractor Performance Assessment Reporting System DEC 2015

FAR 42.1502 directs all Federal agencies to collect past performance information on contracts. The Department of the Interior (DOI) has implemented the Contractor Performance Assessment Reporting System (CPARS) to comply with this regulation. One or more past performance evaluations will be conducted in order to record your contract performance as required by FAR 42.15.

2) The past performance evaluation process is a totally paperless process using CPARS. CPARS is a web-based system that allows for electronic processing of the performance evaluation report. Once the report is processed, it is available in the Past Performance Information Retrieval System (PPIRS) for Government use in evaluating past performance as part of a source selection action.

3) We request that you furnish the Contracting Officer (CO) with the name, position title, phone number, and email address for each person designated to have access to your firm's past performance evaluation(s) for the contract no later than 30 days after award. Each person granted access will have the ability to provide comments in the Contractor portion of the report and state whether or not the Contractor agrees with the evaluation, before returning the report to the Assessing Official (AO). Information in the report must be protected as source selection sensitive information not releasable to the public.

4) When your Contractor Representative(s) are registered in CPARS, they will receive an automatically generated email with detailed login instructions. Further details, systems requirements, and training information for CPARS is available at <https://www.cpars.gov/>.

5) Within 60 days after the end of a performance period, the AO will complete an interim or final past performance evaluation, and the report will be accessible at <https://www.cpars.gov/>.

a) Contractor Representatives may then provide comments in response to the evaluation, or return the evaluation without comment.

b) Your comments should focus on objective facts in the AO's narrative and should a) provide your views on the causes and ramifications of the assessed performance.

c) All information provided should be reviewed for accuracy prior to submission.

d) If you elect not to provide comments, please acknowledge receipt of the evaluation by indicating "No comment" in the space provided, and then selecting "Accept the Ratings and Close the Evaluation".

e) Your response is due within 60 calendar days after receipt of the CPAR. On day 15, the evaluation will become available in PPIRS-RC marked as "Pending" with or without comments and whether or not it has been closed.

f) If you do not sign and submit the CPAR within 60 days, it will automatically be returned to the Government and will be annotated: "The report was delivered/received by the contractor on (date). The contractor neither signed nor offered comment in response to this assessment."

The following guidelines apply concerning your use of the past performance evaluation:

Protect the evaluation as source selection information. After review, transmit the evaluation by completing and submitting the form through CPARS. If for some reason you are unable to view and/or submit the form through CPARS, contact the CO for instructions. Strictly control access to the evaluation within your organization. Ensure the evaluation is never released to persons or entities outside of your control.

Prohibit the use of or reference to evaluation data for advertising, promotional material, pre-award surveys, responsibility determinations, production readiness reviews, or other similar purposes.

If you wish to discuss a past performance evaluation, you should request a meeting in writing to the CO no later than seven days following your receipt of the evaluation. The meeting will be held in person or via telephone or other means during your 60-day review period.

A copy of the completed past performance evaluation will be available in CPARS for your viewing and for Government use supporting source selection actions after it has been finalized.

(End of Clause)

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DOI-AAAP-0028 Electronic Invoicing and Payment Requirements - Invoice Processing Platform (IPP) (February 2021)

Payment requests must be submitted electronically through the U. S. Department of the Treasury's Invoice Processing Platform System (IPP).

"Payment request" means any request for contract financing payment or invoice payment by the Contractor. To constitute a proper invoice, the payment request must comply with the requirements identified in the applicable Prompt Payment clause included in the contract, or the clause 52.212-4 Contract Terms and Conditions - Commercial Items included in commercial item contracts. The IPP website address is: <https://www.ipp.gov>.

Under this contract, the following documents are required to be submitted as an attachment to the IPP invoice [Contracting Officer to edit and include the documentation required under this contract]:

The Contractor must use the IPP website to register access and use IPP for submitting requests for payment. The Contractor Government Business Point of Contact (as listed in SAM) will receive enrollment instructions via email from the Federal Reserve Bank of St. Louis (FRBSTL) within 3 - 5 business days of the contract award date. Contractor assistance with enrollment can be obtained by contacting the IPP Production Helpdesk via email IPPCustomerSupport@fiscal.treasury.gov or phone (866) 973-3131.

If the Contractor is unable to comply with the requirement to use IPP for submitting invoices for payment, the Contractor must submit a waiver request in writing to the Contracting Officer with its proposal or quotation.

(End of Local Clause)

1452.201-70 Authorities and Delegations - (Sep 2011)

(a) The Contracting Officer is the only individual authorized to enter into or terminate this contract, modify any term or condition of this contract, waive any requirement of this contract, or accept nonconforming work.

(b) The Contracting Officer will designate a Contracting Officer's Representative (COR) at time of award. The COR will be responsible for technical monitoring of the contractor's performance and deliveries. The COR will be appointed in writing, and a copy of the appointment will be furnished to the Contractor. Changes to this delegation will be made by written changes to the existing appointment or by issuance of a new appointment.

(c) The COR is not authorized to perform, formally or informally, any of the following actions:

1. Promise, award, agree to award, or execute any contract, contract modification, or notice of intent that changes or may change this contract;
2. Waive or agree to modification of the delivery schedule;
3. Make any final decision on any contract matter subject to the Disputes Clause;
4. Terminate, for any reason, the Contractor's right to proceed;
5. Obligate in any way, the payment of money by the Government.

(d) The Contractor shall comply with the written or oral direction of the Contracting Officer or authorized representative(s) acting within the scope and authority of the appointment memorandum. The Contractor need not proceed with direction that it considers to have been issued without proper authority. The Contractor shall notify the Contracting Officer in writing, with as much detail as possible, when the COR has taken an action or has issued direction (written or oral) that the Contractor considers to exceed the COR's appointment, within 3 days of the occurrence. Unless otherwise provided in this contract, the Contractor assumes all costs, risks, liabilities, and consequences of performing any work it is directed to perform that falls within any of the categories defined in paragraph (c) prior to receipt of the Contracting Officer's response issued under paragraph (e) of this clause.

(e) The Contracting Officer shall respond in writing within 30 days to any notice made under paragraph (d) of this clause. A failure of the parties to agree upon the nature of a direction, or upon the contract action to be taken with respect thereto, shall be subject to the provisions of the Disputes clause of this contract.

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(f) The Contractor shall provide copies of all correspondence to the Contracting Officer and the COR.

(g) Any action(s) taken by the Contractor, in response to any direction given by any person acting on behalf of the Government or any Government official other than the Contracting Officer or the COR acting within his or her appointment, shall be at the Contractor's risk.

(End of Local Clause)

Local Internet Payment Platform (IPP) Hotline

To check payment status, contact the Payment Hotline at 877-480-9724 or 303-236-2850. You will need to leave a message with the following information:

1. Company Name
2. Contract Number
3. Invoice Number
4. Invoice Amount
5. A brief description of why you are calling.
6. Your contact information

If you do not receive a callback from the Payment Hotline within 72 hours, please contact the Contract Officer with the day and time you contacted the Payment Hotline.

Government Point of Contact

Laurie Ehlinger
lehlinger@ios.doi.gov
Bureau of Land Management

(End of Local Clause)

52.204-9 Personal Identity Verification of Contractor Personnel. (Jan 2011)

(a) The Contractor shall comply with agency personal identity verification procedures identified in the contract that implement Homeland Security Presidential Directive-12 (HSPD-12), Office of Management and Budget (OMB) guidance M-05-24 and Federal Information Processing Standards Publication (FIPS PUB) Number 201.

(b) The Contractor shall account for all forms of Government-provided identification issued to the Contractor employees in connection with performance under this contract. The Contractor shall return such identification to the issuing agency at the earliest of any of the following, unless otherwise determined by the Government:

- (1) When no longer needed for contract performance.
- (2) Upon completion of the Contractor employee's employment.
- (3) Upon contract completion or termination.

(c) The Contracting Officer may delay final payment under a contract if the Contractor fails to comply with these requirements.

(d) The Contractor shall insert the substance of this clause, including this paragraph (d), in all subcontracts when the subcontractor's employees are required to have routine physical access to a Federally-controlled facility and/or routine access to a Federally-controlled information system. It shall be the responsibility of the prime Contractor to return such identification to the issuing agency in accordance with the terms set forth in paragraph (b) of this section, unless otherwise approved in writing by the Contracting Officer.

(End of clause)

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52.212-4 Contract Terms and Conditions—Commercial Products and Commercial Services (Nov 2025) (DEV Nov 2025)

(a) Definitions. The clause at Federal Acquisition Regulation (FAR) 52.202-1, Definitions, is incorporated by reference.

(b) Inspection/Acceptance. The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(c) Assignment. The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(d) Changes. Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(e) Disputes. This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal, or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause FAR 52.233-1, Disputes, which is incorporated in this contract by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(f) Excusable delays. The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence. Examples of occurrences include acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. When an excusable delay occurs, the Contractor shall—

(1) Notify the Contracting Officer in writing as soon as possible

(2) Remedy the delay as quickly as possible; and

(3) Notify the Contracting Officer when the occurrence is over.

(g) Invoice. The Government will handle invoices according to the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR part 1315. The Contractor shall submit invoices to the address designated in the contract to receive invoices. An invoice must include the information required by 5 CFR part 1315.9(b).

(h) Patent indemnity. The Contractor shall indemnify the Government and its officers, employees, and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment—

(1) Items accepted. Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

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(2) Prompt payment. The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) Discount. In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date that appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(4) Overpayments. If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable;

(D) Contractor point of contact; and

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(5) Interest.(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) Final decisions. The Contracting Officer will issue a final decision as required by FAR part 33 if—

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see FAR part 32).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a termination for cause.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on—

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

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(vii) The interest charge made under this clause may be reduced under the procedures for interest credits prescribed in FAR part 32 in effect on the date of this contract.

(j) Risk of loss. Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon—

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) Taxes. The contract price includes all applicable Federal, State, and local taxes and duties.

(l) Termination for the Government's convenience. The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) Termination for cause. The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. The Government will send a cure notice to the Contractor, unless the reason for the termination is late delivery. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) Title. Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) Warranty. The Contractor warrants and implies that the items delivered under this contract are merchantable and fit for use for the particular purpose described in this contract.

(p) Limitation of liability. Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) Compliance with laws unique to Government contracts. The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Government-financed air transportation; and 41 U.S.C. chapter 21 relating to procurement integrity.

(r) Order of precedence. Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services;

(2) The Disputes, Payments, Invoice, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) Other contract clauses incorporated in the solicitation or contract;

(4) Addenda to this solicitation or contract;

(5) Solicitation provisions incorporated in the solicitation;

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(6) Other paragraphs of this clause;

(7) Other documents, exhibits, and attachments; and

(8) The specification.

(s) Unauthorized obligations.

(1) Except as stated in paragraph (s)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government-authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (s)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(t) Comptroller General examination of record. This paragraph applies if this contract was awarded using other than sealed bid procedures and is in excess of the simplified acquisition threshold on the date of award of this contract.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices, at all reasonable times, the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR part 4, longer period required by statute, or periods specified in other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This clause does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(u) Incorporation by reference. The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of clause)

:

Performance Incentive

This solicitation includes a performance incentive for prospective vendors. This incentive is to sell 94% or more of the total ISDRA permits off-site (outside the fee enforcement boundary that extends one mile beyond the recreation area, see map at <https://www.blm.gov/sites/blm.gov/files/maps-avenza-california-imperial-sand-dunes-recreationarea.pdf>). BLM has set this target in order to improve customer service for the ISDRA visitors. By increasing permit availability off-site, at highly visited, effective, and convenient locations, the BLM has reduced traffic, and improved customer satisfaction with the program.

If the contractor sells 94% or more of permits off-site, the Government will pay an incentive amount of \$45,000.00.

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In no event shall the total incentive exceed \$45,000.00.

The sales and incentive amount apply to the contract base period and all option periods.

The contractor will document all permit sales each month and provide to the COR by the 10th of the following month. Within 45 days after the end of the permit sales season (April 15th) the contractor shall submit a total and final permit sales report to the Contracting Officer, Contract Specialist and Contracting Officer's Representative

52.217-8 Option to Extend Services. (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor.

The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months.

The Contracting Officer may exercise the option by written notice to the Contractor before the expiration of the contract.

(End of clause)

52.217-9 Option to Extend the Term of the Contract. (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 days, provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 15 days. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of clause)

52.228-5 Insurance-Work on a Government Installation. (Jan 1997)

(a) The Contractor shall, at its own expense, provide and maintain during the entire performance of this contract, at least the kinds and minimum amounts of insurance required in the Schedule or elsewhere in the contract.

(b) Before commencing work under this contract, the Contractor shall notify the Contracting Officer in writing that the required insurance has been obtained. The policies evidencing required insurance shall contain an endorsement to the effect that any cancellation or any material change adversely affecting the Government's interest shall not be effective-

(1) For such period as the laws of the State in which this contract is to be performed prescribe; or

(2) Until 30 days after the insurer or the Contractor gives written notice to the Contracting Officer, whichever period is longer.

(c) The Contractor shall insert the substance of this clause, including this paragraph (c), in subcontracts under this contract that require work on a Government installation and shall require subcontractors to provide and maintain the insurance required in the Schedule or elsewhere in the contract. The Contractor shall maintain a copy of all subcontractors' proofs of required insurance, and shall make copies available to the Contracting Officer upon request.

(End of clause)

52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)

In compliance with the Service Contract Labor Standards statute and the regulations of the Secretary of Labor (29 CFR Part 4), this clause identifies the classes of service employees expected to be employed under the contract and states the wages and fringe benefits payable to each if they were employed by the contracting agency subject to the provisions of 5 U.S.C.5341 or 5 332.

This Statement is for Information Only: It is not a Wage Determination

Employee Class	Monetary Wage-Fringe Benefits
Customer Service Representative	\$27.09
Accounting Clerk II	\$22.32
Recreation Specialist	\$33.34

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52.228-10 Vehicular and General Public Liability Insurance. (Apr 1984)

(a) The Contractor, at the Contractor's expense, agrees to maintain, during the continuance of this contract, vehicular liability and general public liability insurance with limits of liability for-

- (1) Bodily injury of not less than \$100,000.00 for each person and \$500,000.00 for each occurrence; and
- (2) Property damage of not less than \$100,000.00 for each accident and \$500,000.00 in the aggregate.

(b) The Contractor also agrees to maintain workers' compensation and other legally required insurance with respect to the Contractor's own employees and agents.

(End of clause)

52.223-23, Sustainable Products and Services (MAY 2024) (DEVIATION Nov 2025)

(a) *Definitions.* As used in this clause—

Biobased product means a product determined by the U.S. Department of Agriculture (USDA) to be a commercial product or industrial product (other than food or feed) that is composed, in whole or in significant part, of biological products, including renewable domestic agricultural materials and forestry materials, or that is an intermediate ingredient or feedstock. The term includes, with respect to forestry materials, forest products that meet biobased content requirements, notwithstanding the market share the product holds, the age of the product, or whether the market for the product is new or emerging. ([7 U.S.C. 8101](#)) ([7 CFR part 4270.2](#)).

Recovered material means waste materials and by-products recovered or diverted from solid waste, but the term does not include those materials and by-products generated from, and commonly reused within, an original manufacturing process. ([42 U.S.C. 6903](#)).

Sustainable products and services means:

(1) Products containing recovered material designated by the U.S. Environmental Protection Agency (EPA) under the Comprehensive Procurement Guidelines ([42 U.S.C. 6962](#)) ([40 CFR part 247](#)) (<https://www.epa.gov/smm/comprehensive-procurement-guideline-cpg-program#products>).

(2) Energy- and water-efficient products that are ENERGY STAR® certified or Federal Energy Management Program (FEMP)-designated products ([42 U.S.C. 8259b](#)) ([10 CFR part 436, subpart C](#)) (<https://www.energy.gov/eere/femp/search-energy-efficient-products> and <https://www.energystar.gov/products?s=mega>).

(3) Biobased products meeting the content requirement of the USDA under the BioPreferred® program ([7 U.S.C. 8102](#)) ([7 CFR part 3201](#)) (<https://www.biopreferred.gov>).

(4) Acceptable chemicals, products, and manufacturing processes listed under EPA's Significant New Alternatives Policy (SNAP) program, which ensures a safe and smooth transition away from substances that contribute to the depletion of stratospheric ozone ([42 U.S.C. 76711](#)) ([40 CFR part 82, subpart G](#)) (<https://www.epa.gov/snap>).

(b) *Requirements.*

(1) The sustainable products and services, including the purchasing program and type of product or service, that are applicable to this contract, and any products or services that are not subject to this clause, will be set forth in the statement of work or elsewhere in the contract.

(2) The Contractor shall ensure that the sustainable products and services required by this contract are—

- (i) Delivered to the Government;
- (ii) Furnished for use by the Government;
- (iii) Incorporated into the construction of a public building or public work; and
- (iv) Furnished for use in performing services under this contract, where the cost of the products is a direct cost to this contract (versus costs which are normally applied to the Contractor's general and administrative expenses or indirect costs). This includes services performed by contractors performing management and operation of Government-owned facilities to the same extent that, at the time of award, an agency would be required to comply if an agency operated or supported the facility.

(c) *Resource.* The Green Procurement Compilation (GPC) available at <https://sftool.gov/greenprocurement> provides a comprehensive list of sustainable products and services and sustainable acquisition guidance. The Contractor should review the GPC when determining which statutory purchasing programs apply to a specific product or service.

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End of clause

52.252-2 Clauses Incorporated by Reference February 1998

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

(End of clause)

52.252-6 Authorized Deviations in Clauses NOV 2020

(a) The use in this solicitation or contract of any Federal Acquisition Regulation (48 CFR Chapter 1) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the clause.

(b) The use in this solicitation or contract of any Department of Interior Acquisition Regulation Supplement (DIARS) (48 CFR 14) clause with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.

(End of clause)

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CLAUSES INCORPORATED BY REFERENCE

52.202-1	DEFINITIONS	JUN 2020
52.203-3	GRATUITIES	APR 1984
52.203-5	CONVENANT AGAINST CONTINGENT FEES	MAY 2014
52.203-6	RESTRICTIONS ON SUBCONTRACTOR SALES TO THE GOVERNMENT	JUN 2020
52.203-8	CANCELLATION, RESCISSION, AND RECOVERY OF FUNDS FOR ILLEGAL OR IMPROPER ACTIVITY	MAY 2014
52.203-10	PRICE OR FEE ADJUSTMENT FOR ILLEGAL OR IMPROPER ACTIVITY	MAY 2014
52.203-12	LIMITATION ON PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	JUNE 2020
52.203-16	PREVENTING PERSONAL CONFLICTS OF INTEREST	JUNE 2020
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS AND REQUIREMENT TO INFORM EMPLOYEES OF WHISTLEBLOWER RIGHTS	NOV 2023
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
52.204-10	REPORTING EXECUTIVE COMPENSATION AND FIRST-TIER SUBCONTRACT AWARD	JAN 2011 (DEV NOV 2025)
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	OCT 2018 (DEV NOV 2025)
52.204-14	SERVICE CONTRACT REPORTING REQUIREMENTS	OCT 2016 (DEV Nov 2025)
52.204-19	INCORPORATION BY REFERENCE OF REPRESENTATIONS AND CERTIFICATIONS	DEC 2014
52.209-6	PROTECTING THE GOVERNMENTS INTERERST WHEN SUBCONTRACTIN WITH CONTRACTORS DEBARRED, SUSPENDED PRPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED	JAN 2025 (DEV NOV 2025)
52.209-10	PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC COPORTATIONS	Nov 2015 (DEV Nov 2025)
52.212-4	CONTRACT TERMS AND CONDITIONS –COMMERCIAL ITEMS	NOV 2023 (DEV NOV 2025)
52.219-4	NOTICE OF PRICE EVALUATIN PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS	OCT 2022 (DEV NOV 2025)
52.219-6	NOTICE OF TOTAL SMALL BUSINESS SET ASIDE	JAN 2025 (DEV NOV 2025)
52.219-8	UILZATION OF SMALL BUSINESS	JAN 2025 (DEV FEB 2026)
52.219-16	LIQUIDATED DAMAGES-SUBCONTRACTING PLAN	SEPT 2021 (DEV NOV 2025)
52.219-28	POST AWARD SMALL BUSINESS PROGRAM RE-REPRESENTATION	JAN 2025 (DEV NOV 2025)
52.222-3	CONVICT LABOR	Jun 2003 (DEV NOV 2025)
52.222-19	CHILD LABOR-COOPERATION WITH AUTHORIES AND REMEDIES	JAN 2025 (DEV NOV 2025)
52.222-35	EQUAL OPPORTUNITY FOR VETERANS	JUN 2020 (DEV NOV 2025)

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52.222-36	EQUAL OPPORTUNITY FOR WORKERS WITH DISABILITIES	JUN 2020 (DEV NOV 2025)
52.222-37	EMPLOYMENT REPORTS ON VETERANS	JUN 2020 (DEV NOV 2025)
52.222-40	NOTIFICATION OF EMPLOYEE RIGHTS UNDER THE NATIONAL LABOR RELATIONS ACT	DEC 2010 (DEV NOV 2025)
52.222-41	SERVICE CONTRACT LABOR STANDARDS	AUG 20118 (DEV NOV 2025)
52.222-42	STATEMENT OF EQUIVALENT RATES FOR FEDERAL HIRES	MAY 2014
52.222-50	COMBATING TRAFFICKING IN PERSONS	OCT 2025 (DEV NOV 2025)
52.222-54	EMPLOYMENT ELIGIBILITY VERIFICATIONS	JAN 2025 (DEV NOV 2025)
52.222-55	MINIMUM WAGES FOR CONTRACTOR WORKERS UNDER EXECUTIVE ORDER 14026	JAN 2022 (DEV NOV 2025)
52.222-62	PAID SICK LEAVE UNDER ORDER 13706	JAN 2022 (DEV NOV 2025)
52.225-1	BUY AMERICAN-SUPPLIES	OCT 2022 (DEV NOV 2025)
52.225-3	BUY AMERICAN-FREE TRADE AGREEMENTS-ISRAELI TRADE ACT	NOV 2023 (DEV NOV 2025)
52.226-8	ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING	MAY 2024
52.232-33	PAYMENT BY ELECTRONIC FUNDS TRANSFER-SYSTEM FOR AWARD MANAGEMENT	OCT 2018
52.232-39	UNENFORCEABILITY OF UNAUTHORIZED OBLIGATIONS	JUN 2013
52.232-40	PROVIDING ACCELERATED PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	MAR 2023
52.233-1	DISPUTES	MAY 2014 (DEV NOV 2025)
52.333-3	PROTESTS AFTER AWARD	AUG 1996 (DEV NOV 2025)
52.233-4	APPLICABLE LAW FOR BREACH OF CONTRACT CLAIM	OCT 2004 (DEV NOV 2025)
52.242-5	PAYMENTS TO SMALL BUSINESS SUBCONTRACTORS	JAN 2017
52.242-13	BANKRUPTCY	JUL 1995
52.243-1 ALT I	CHANGES-FIXED PRICE	AUG 1987
52.244-6	SUBCONTRACTS FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES	JAN 2025 (DEV FEB 2025)
52.246-2	INSPECTION OF SUPPLIES – FIXED – PRICE	AUG 1996
52.247-34	F.O.B. DESTINATION	NOV 1991
52.249-2	TERMINATION FOR CONVENIENCE OF THE GOVERNMENT (FIXED-PRICE)	APR 2012

*******END OF CLAUSES*******

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SECTION 3 - ATTACHMENT(S) TABLE

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2	Attachment 2 Performance Work Statement Appendix 2-ISDRA Map Appendix 3-Sample Season Permit Appendix 4-Sample Weekly Off-site Permits Appendix 5-Sample Weekly On-Site Permits Appendix 6-ISDRA Business Plan Appendix 7-Recreation and Permit Fee Handbook Appendix 8-ACH_CC_Fedwire Form	265
3	Attachment 3 Appendix 1 Sample Permit Sales Spreadsheet	1
4	Attachment 4 Appendix 9-FY2025 ISDRA Visitation Stats	1
5	Attachment 5 Wage Determination 2015-5607 REV 28	10
6	Attachment 6 Past Performance Reference	1

*******END OF ATTACHMENTS*******

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SECTION 4 - PROVISIONS

PROVISIONS INCORPORATED BY FULL TEXT

52.209-7 Information Regarding Responsibility Matters. (Oct 2018) (DEV NOV 2025)

(a) *Definitions.* As used in this provision—

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see [52.204-7](#)).

(End of provision)

52.212-1 Instructions to Offerors—Commercial Products and Commercial Services. (SEP 2023) (DEV NOV 2025)

(a) Submission of offers. Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include—

- (1) The solicitation number;
- (2) The name, address, telephone number of the Offeror;
- (3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;
- (4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;

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(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) Period for acceptance of offers. The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is "late" and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) Contract award (not applicable to Invitation for Bids). The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror's initial offer should contain the Offeror's best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) Debriefings. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed Offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

Evaluation - Commercial Products and Commercial Services (NOV 2021) (DEV NOV 2025)

- (a) (a) The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

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- Factor 1 – Technical Capability
 - o Criterion 1: Technical Approach
 - o Criterion 2: Quality Control Plan
 - o Criterion 3: Experience
- Factor 2 – Past Performance
- Factor 3 – Price

Basis for contract award.

This is a competitive best value source selection. The Government will select the best overall quote based upon an integrated assessment of technical capability, past performance, and price. This may result in award to a higher rated, higher-priced offeror, where the decision is consistent with the evaluation factors and the Contracting Officer reasonably determines that the technical superiority, overall business approach or superior past performance of a higher-priced quote outweighs the price difference. While the source selection evaluation team will strive for maximum objectivity, the source selection process by its nature is subjective. To be eligible for award, the offeror must be deemed responsible in accordance with FAR 9.104; provide all documentation/information required in the instruction section of this solicitation, meet all requirements of the solicitation, and conform to all required terms and conditions. Failure to comply with the terms and conditions of the solicitation may result in the offeror being ineligible for award. Offerors must clearly identify any exception to the solicitation terms and conditions and must provide complete supporting rationale.

Number of contracts to be awarded.

The Government intends to award a single contract to the offeror that provides the best overall value to the Government based on the evaluation criteria of this solicitation.

Evaluation Criteria.

In evaluating quotes, the Government will make tradeoffs among the factors to select the quote that is most advantageous to the Government. To arrive at a best value decision, the Government will assess each quote in accordance with the following evaluation criteria (and as identification in Attachment 6 – Addendum, to FAR 52.212-1 – Instructions to Offerors – Commercial Items).

- Factor 1: Technical Quote
 - o Criterion 1: Technical Approach
 - o Criterion 2: Quality Control Plan
 - o Criterion 3: Experience
- Factor 2: Past Performance
- Factor 3: Price

Relative Importance of Factors.

When combined, Factors 1 and 2 are significantly more important than Factor 3. However, Factor 3 is still a major consideration in the source selection decision. The price factor may become more significant in contributing to the source selection decision if competing quotes offer comparably evaluated technical quote and past performance assessment.

Evaluation Process.

An adjectival rating will be used to evaluate the Technical Quote. Past Performance will be an acceptable or nonacceptable rating. Adjectival ratings shall not be used for offeror's price quotes. Risk is integral to the evaluation of all factors.

In evaluating quotes, the Government will award to the responsible offeror who provides the best overall value to the Government based on the evaluation criteria of this solicitation. Offerors are cautioned to submit sufficient information as required by this solicitation, FAR 52.212-1 – Instructions to Offerors and its Addendum (see Attachment 6). Offerors may be asked to clarify certain aspects of their quote. The following addresses how each offeror's quote will be evaluated.

1. FACTOR 1 – Technical Quote:

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Ratings. Based upon the Government's evaluation a technical quote adjectival rating will be assigned which reflects the extent to which the quote meets or exceeds the Government's specified performance and capability requirements considering any strengths, deficiencies, and weaknesses associated with the technical capabilities.

The adjectival ratings shown below will be used to evaluate Factor 1: Technical Quote. The adjectival rating depicts how well the offeror's quote meets the Technical Quote requirements and the level of risk assessed.

Rating	Description
Outstanding	Quote meets requirements and indicates exceptional capabilities and understanding of the requirements. Strengths far outweigh any weaknesses. Risk of unsuccessful performance is very low.
Good	Quote meets requirements and indicates good capabilities and understanding of the requirements. Quote contains strengths which outweigh any weaknesses. Risk of unsuccessful performance is low.
Acceptable	Quote meets requirements and indicates adequate capabilities and understanding of the requirements. Strengths and weaknesses are offsetting or will have little or no impact on contract performance. Risk of unsuccessful performance is no worse than moderate.
Marginal	Quote does not clearly meet requirements and has not demonstrated adequate capabilities and understanding of the requirements. The quote has one or more weaknesses which are not offset by strengths. Risk of unsuccessful performance is high.
Unacceptable	Quote does not meet requirements and contains one or more deficiencies. Quote is unawardable.

Technical Quote. The quote shall demonstrate a thorough understanding of and a sound plan to meet contract PWS requirements. The quote will be evaluated to determine risks associated with identified capabilities and the following:

- How well does the quote demonstrate sound technical capabilities to meet all PWS requirements.
- How well the offeror describes their technical approach and methods used to increase sales of permits and to ensure permits are always stocked at third party vendors and through the secure website.
- How well the offeror outlines the procedures of ensuring compliance of cash handling safety, accountability of cash and credit card records, bank deposits, personal identifiable information protection (identity theft), and accountability of permits from production to sales and monthly reporting.
- How well the offeror provides a narrative explaining the material proposed for the seasonal permit.
- How well does the offeror provides a schematic/drawing of the weekly and seasonal permit that meets the requirements set forth in the PWS.
- How well the offeror describes their technical approach in website design and function and how customers can obtain customer service and real-time status of orders.
- How well performance will be monitored to ensure acceptable quality levels are met and procedures are described for receiving a customer complaint and procedures in place in resolving them.
- How well the provided experience information relates to the PWS requirements.

2. FACTOR 2 – Past Performance:

The Government will contact the references provided to obtain past performance information. Past performance will be evaluated to assess how well the offeror has successfully managed and performed contracts similar in nature and complexity of this acquisition. Past Performance information can be obtained from any other sources available to the Government, to include, but not limited to, the Past Performance Information Retrieval System (PPIRS), Federal Awardee Performance and Integrity Information System (FAPIS), or other databases, interviews with Contracting Officers and Contracting Officer's Representatives. Any or all of these sources may be used in this evaluation to obtain a complete picture of past performance. The final past performance rating will be acceptable and/or nonacceptable.

3. FACTOR 3 – Price:

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Adjectival ratings shall not be used for offeror's price quote. The price evaluation will assess each offeror's price and total contract value (base and all options) to determine fair and reasonableness. It is anticipated that there will be adequate price competition; therefore, no additional data will be required from offerors. If the Contracting Officer determines there is not adequate price competition, then additional data may be necessary to determine price fair and reasonable.

(b) Options. The Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that an offer is unacceptable if the option prices are significantly unbalanced. Evaluation of options shall not obligate the Government to exercise the option(s).

(c) A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration time, the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

Solicitation Requirements, Terms and Conditions. The offeror is required to meet all solicitation requirements, such as terms and conditions, representations and certifications, and technical requirements in addition to those identified as factors and/or criteria. Failure to comply with the terms and conditions of the solicitation may result in the offeror being ineligible for award. Offerors must clearly identify any exception the solicitation terms and conditions and must provide complete supporting rationale.

Award Without Discussion. As set forth in FAR 52.212(g), the Government intends to evaluate quotes and award a contract without discussions with offerors (except potential clarifications). Therefore, the offeror's initial quote should contain the offeror's best terms from a technical and price standpoint.

(End of provision)

52.216-1 Type of Contract (APR 1984) (DEV NOV 2025)

The Government contemplates award of a Firm Fixed Price contract resulting from this solicitation.

(End of provision)

52.237-1 Site Visit (Apr 1984)

Offerors or quoters are urged and expected to inspect the site where services are to be performed and to satisfy themselves regarding all general and local conditions that may affect the cost of contract performance, to the extent that the information is reasonably obtainable. In no event shall failure to inspect the site constitute grounds for a claim after contract award.

52.233-2 Service of Protest Department of the Interior ((SEP 2006) (DEV NOV 2025)

(a)Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from Kirsten Quinones, Bureau of Land Management – National Operations Center, Denver Federal Center, Building 50, OC-662, PO Box 25047, Denver, Colorado 80225.

(b)The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(c) A copy of the protest served on the Contracting Officer shall be simultaneously furnished by the protester to the Department of the Interior Assistant Solicitor, Acquisitions and Intellectual Property, 1849 C Street, NW., Room 6511, Washington, DC 20240.

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52.252-1 Solicitation Provisions Incorporated by Reference – February 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this address:

<http://acquisition.gov/far/index.html>

(End of Provision)

52.252-5 Authorized Deviations in Provisions – Nov 2020

- (a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the date of the provision.
- (b) The use in this solicitation of any Department of Interior Acquisition Regulation Supplement (DIARS) (48 CFR 14) provision with an authorized deviation is indicated by the addition of “(DEVIATION)” after the name of the regulation.

(End of Provision)

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1452.215-71 Use and Disclosure of Proposal Information-Department of the Interior. (APR 1984)

(a) Definitions. For the purposes of this provision and the Freedom of Information Act (5 U.S.C. 552), the following terms shall have the meaning set forth below:

(1) "Trade Secret" means an unpatented, secret, commercially valuable plan, appliance, formula, or process, which is used for making, preparing, compounding, treating or processing articles or materials which are trade commodities.

(2) "Confidential commercial or financial information" means any business information (other than trade secrets) which is exempt from the mandatory disclosure requirement of the Freedom of Information Act, 5 U.S.C. 552. Exemptions from mandatory disclosure which may be applicable to business information contained in proposals include exemption (4), which covers "commercial and financial information obtained from a person and privileged or confidential," and exemption (9), which covers "geological and geophysical information, including maps, concerning wells."

(b) If the offeror, or its subcontractor(s), believes that the proposal contains trade secrets or confidential commercial or financial information exempt from disclosure under the Freedom of Information Act, (5 U.S.C. 552), the cover page of each copy of the proposal shall be marked with the following legend: "The information specifically identified on pages of this proposal constitutes trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act. The offeror requests that this information not be disclosed to the public, except as may be required by law. The offeror also requests that this information not be used in whole or part by the government for any purpose other than to evaluate the proposal, except that if a contract is awarded to the offeror as a result of or in connection with the submission of the proposal, the Government shall have the right to use the information to the extent provided in the contract."

(c) The offeror shall also specifically identify trade secret information and confidential commercial and financial information on the pages of the proposal on which it appears and shall mark each such page with the following legend: "This page contains trade secrets or confidential commercial and financial information which the offeror believes to be exempt from disclosure under the Freedom of Information Act and which is subject to the legend contained on the cover page of this proposal."

(d) Information in a proposal identified by an offeror as trade secret information or confidential commercial and financial information shall be used by the Government only for the purpose of evaluating the proposal, except that (i) if a contract is awarded to the offeror as a result of or in connection with submission of the proposal, the Government shall have the right to use the information as provided in the contract, and (ii) if the same information is obtained from another source without restriction it may be used without restriction.

(e) If a request under the Freedom of Information Act seeks access to information in a proposal identified as trade secret information or confidential commercial and financial information, full consideration will be given to the offeror's view that the information constitutes trade secrets or confidential commercial or financial information. The offeror will also be promptly notified of the request and given an opportunity to provide additional evidence and argument in support of its position, unless administratively unfeasible to do so. If it is determined that information claimed by the offeror to be trade secret information or confidential commercial or financial information is not exempt from disclosure under the Freedom of Information Act, the offeror will be notified of this determination prior to disclosure of the information.

(f) The Government assumes no liability for the disclosure or use of information contained in a proposal if not marked in accordance with paragraphs (b) and (c) of this provision. If a request under the Freedom of Information Act is made for information in a proposal not marked in accordance with paragraphs (b) and (c) of this provision, the offeror concerned shall be promptly notified of the request and given an opportunity to provide its position to the Government. However, failure of an offeror to mark information contained in a proposal as trade secret information or confidential commercial or financial information will be treated by the Government as evidence that the information is not exempt from disclosure under the Freedom of Information Act, absent a showing that the failure to mark was due to unusual or extenuating circumstances, such as a showing that the offeror had intended to mark, but that markings were omitted from the offeror's proposal due to clerical error.

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PROVISIONS INCORPORATED BY REFERENCE

52.203-11	CERTIFICATION AND DISCLOSURE REGARDING PAYMENTS TO INFLUENCE CERTAIN FEDERAL TRANSACTIONS	SEP 2024
52.203-18	PROHIBITION ON CONTRACTING WITH ENTITIES THAT REQUIRE CERTAIN INTERNAL CONFIDENTIALITY AGREEMENTS OR STATEMENTS- REPRESENTATION	JAN 2017
52.204-7	SYSTEM FOR AWARD MANAGEMENT	NOV 2024 (DEV NOV 2025)
52.209-11	REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW	FEB 2016
52.217-5	EVALUATION OF OPTIONS	JUL 1990
52.219-1	SMALL BUSINESS PROGRAM REPRESENTATIONS	FEB 2024 (DEV NOV 2025)
52.233-2	SERVICE OF PROTEST	SEP 2006 (DEV NOV 2025)
1452.233-2	SERVICE OF PROTEST	JUL 1996

*******END OF PROVISIONS*******
